

The Court finds, from a review of the pleadings, good cause for the documents sought by this request.

Auberge responded to the request by answering “Responding Party cannot comply with this request because the requested documents are not in the possession, control or custody of Responding Party. A diligent and reasonable search was made to locate these documents. Responding Party did not have any contracts with Robert Pausmith.” (RSS at 68:23-25.) The Court finds that a reasonable inference from the last statement is that no responsive documents ever existed in Auberge’s possession, custody, or control. The Court, therefore, finds that the response satisfies the requirements of Section 2031.230.)

Plaintiff fails to persuade the Court that anything further is required.

E. SANCTIONS

The Court finds that other circumstances make the imposition of sanctions unjust. (See §§ 2030.300, subd. (d), and 2031.310, subd. (h).)

“‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

The disputes presented by the instant motion reflect a failure on the part of counsel for each party to work to honor their client’s discovery obligations. None of the scores of disputes presented were difficult for the Court to resolve. None represented a balancing of competing rights. Rather, it appears to the Court that the parties ignored their respective rights and obligations under the Civil Discovery Act, and engaged in significant overreach. By its Minute Order of July 16, 2026, the Court noted that counsels’ meet and confer efforts appeared to have been perfunctory. The Court specifically noted weaknesses in the positions taken by each of the parties, and ordered the parties to meet and confer further. The parties’ failure to make any significant progress towards resolving the instant dispute, despite the Court’s guidance regarding their respective arguments, is striking.

Based on the foregoing, Plaintiff’s request for an award of monetary sanctions is DENIED.

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Wells Fargo Bank, N.A. v. Kenneth B Salomon

25CV002275

MOTION TO QUASH SERVICE

TENTATIVE RULING: The motion is GRANTED.

A. PROCEDURAL MATTER

Defendant Kenneth Salomon (“Defendant”) moves, pursuant to Code of Civil Procedure section 418.10, subdivision, (a)(1),² for an order quashing Wells Fargo Bank’s (“Plaintiff”) personal service of the summons and complaint on Defendant. Defendant so moves on the grounds that the Court lacks jurisdiction over Defendant because the process server left the summons and complaint at Defendant’s residence on June 7, 2026 by wedging the papers into the front door jam when Defendant was absent from his home, failing to comply with personal service requirements.

B. LEGAL STANDARD

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (§ 418.10, subd. (a)(1).)

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Internal quotes omitted.) A proof of service by a registered process server establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return. (Evid. Code, § 647; see also *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 [filing of proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service].)

C. DISCUSSION

The operative Proof of Service (“POS”) of the summons and complaint, filed June 25, 2026, indicates that the registered California process server personally served copies of the documents on “Kenneth B Salomon” at 740 Chiles Avenue, St. Helena, CA 94574, on June 7, 2026, at 12:33 PM. (6/25/26 POS, §§ 3(a), 4.) The POS includes the following details about the person who was served: “**Gender:** MALE **Age:** 71-81 **Skin Tone:** WHITE **Hair:** BROWN/GRAY **Eye Color:** BROWN **Height:** 5FT 4IN - 5FT 7IN **Weight:** 171 LBS - 190 LBS.” (*Id.*, § 5(a). Emphasis in Original.)

Defendant presents evidence that: “[o]n June 7, 2026 a copy of the Summons and Complaint ... was wedged in the front door jamb [*sic*] of [his] residence”; “[He] was absent from [his] residence on June 7, 2026 [(“[he] ate lunch at Basque Boulangerie Café in Sonoma on June 7, 2026 at noon”)] and upon [his] return about 5:00 p.m. noticed said summons and complaint upon [his] return”; “[He is] 6 ft. 3 inches tall, ha[s] blue eyes, black hair, [is] 83 years old and weigh[s] 155 lbs.” (Declaration of Kenneth B. Salomon (“Salomon Decl.”), ¶¶ 2, 3, 5; see also Reply Declaration of Kenneth B. Salomon (“Reply Salomon Decl.”), ¶¶ 2-3, Exhs. A-B.)

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

In Opposition, Plaintiff argues that Defendant's self-serving declaration fails to overcome the presumption in favor of the POS because: (1) Defendant does not explain how the process server came into contact with someone matching Defendant's description if the service was not personal, (2) a bare claim that he was not personally served does not overcome a facially valid POS, and (3) small differences in physical description do not outweigh a sworn POS. (Opp., 4:17-5:5.)

In Reply, Defendant reasserts that the POS's physical description does not "match" Defendant, and emphasizes that the mischaracterizations are not "small differences." Thus, Defendant argues that his evidence is sufficient to defeat the POS.

"[I]f the notice was served by a registered process server [citation], plaintiff may take advantage of a statutory presumption: The registered process server's proof of service can be introduced as a business record [citation], thereby creating a presumption affecting defendant's burden of producing evidence. [Citations.] [¶] If defendant does not introduce rebuttal evidence, the trier of fact must find for plaintiff in accordance with the presumption. Conversely, the presumption is dispelled by defendant's introduction of rebuttal evidence, and the burden shifts back to plaintiff to put the person who served the notice on the stand to testify to proper service." (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1427.)

Here, the reasonable inference drawn from the POS's inclusion of Defendant's name as the party served, combined with a physical description of the person personally served is that the process server spoke with someone, with the physical characteristics described in the POS, who identified himself as Kenneth B Salomon at the residence on June 7 at 12:33 PM. This reasonable inference leads to a conclusion that Defendant was properly served via personal service.

However, the Court finds that Defendant has submitted evidence tending to show that he was not home at 12:33 PM on June 7 and that the description of the person "personally served" on June 7 is inconsistent with Defendant's physical characteristics. While the foregoing does not necessarily rebut the reasonable inference that the process server spoke with *someone* who identified himself as Defendant, it does rebut the conclusion that it was in fact *Defendant* who was personally served. As such, the Court may not merely accept the POS's indication of "personal service" on Defendant as true.

Because Plaintiff, in Opposition, solely relies upon its POS and the presumption in support thereof, Plaintiff offers no additional evidence from its process server to explain that the "personal service" complied with the code *as to Defendant*. For example, Plaintiff submits no evidence to (1) explain how the process server confirmed that the person being served was, in fact, Defendant; (2) show that the person matching the physical description in the POS was, perhaps, an authorized agent of Defendant (§ 416.90); or (3) dispute Defendant's contention that the paperwork was left outside of Defendant's plain view (see *Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260). As a result, Plaintiff has failed to meet its burden to establish proper service.

Based on the foregoing, the Motion is GRANTED.

**DEFENDANT’S SPECIAL MOTION TO STRIKE SLAPP SUIT AND FOR ATTORNEY
FEES AND COSTS**

TENTATIVE RULING: Plaintiff’s special motion to strike the Complaint as a strategic lawsuit against public policy is **DENIED**. Plaintiff’s request to strike the Complaint based on the statute of limitations and/or the single publication rule, construed as a Motion for Judgment on the Pleadings, is also **DENIED**.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Motion

Defendant Karen Scheuner (erroneously sued as Karen Coffy) specially moves, pursuant to California Code of Civil Procedure, section 425.16, for an order to strike the Complaint filed by Plaintiff RORE Manufacturing Inc., dba, Roof and Realm (RORE) in its entirety on grounds that the Complaint is a strategic lawsuit against public policy (SLAPP).

While not addressed in the Notice of Motion, Ms. Scheuner also contends, through the supporting memorandum (Support Memo), that RORE’s claims are barred by the statute of limitations and/or the single publication rule of Civil Code section 3425.3. RORE addresses these arguments through its Opposition. The Court construes these requests as a Motion for Judgment on the Pleadings.

2. Nature of Claims

It is undisputed that RORE is in the business of producing, delivering, and assembling prefabricated dwelling units for end-user consumers. Ms. Scheuner is a former customer of RORE’s. The gravamen of the Complaint is that RORE has suffered damage as a result of: (1) alleged publications, by Ms. Scheuner, “of multiple damaging and untrue statements about RORE on social media regarding her purchase and installation of the Home” (Complaint at ¶ 7); and (2) alleged communications, by Ms. Scheuner, of defamatory information (*id.* at ¶ 9.)

RORE asserts its counts under theories of defamation – trade libel / business disparagement, and intentional and negligent interference with prospective economic relations.